

CRITICAL EMPLOYMENT, ETHICAL, AND LEGAL SCENARIOS IN HUMAN RESOURCE DEVELOPMENT



Claretha Hughes
University of Arkansas

Critical Employment, Ethical, and Legal
Scenarios in Human Resource Development
(Hughs)

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Licensing

A detailed breakdown of this resource's licensing can be found in [Back Matter/Detailed Licensing](#).

Preface

This OER contains problem-based, teaching scenarios for instructors to use as they seek to develop the ability of students to critically think about employment, ethical, and legal situations that can occur in the workplace. As organizations seek to achieve their diversity, equity, and inclusion efforts, difficult situations and conversations may occur between workers. Using teaching case methodology does not seek to provide answers but opens up questions and debates among students. Of course, legal statutes and mandates are indeed answers but there are challenges to mandates and statutes in the court systems.

Preparing to engage appropriately within these difficult situations and conversations require knowledge, workplace training and education, and the appropriate behavior from all employees. Hughes (2019) describes the knowledge, workplace training and education, and behavior as diversity intelligence. Critical thinking questions that guide participants' examination of the case content are included. The learning activities allow participants to engage individually or with others. Students may be asked to create learning and/or training activities, assessments, multimedia artifacts, etc... as they engage with the content from this book.

The supplemental readings and bibliography include links to policy documents governing the provision and regulations of training and development, career development, and organization development such as the AHRD Code of Ethics, the ATD Code of Ethics, Government Laws, Regulations, and Mandates. There is also grey literature available such as organizational and institutional reports to provide context and analysis. There is also scholarly literature on the topics as applicable.

These scenarios are self-guiding and problem-based so that instructors may find them, not just theoretical, but user-friendly, practical, and relevant. A feedback template containing questions about the relevance, breadth and depth of content, usability, and user guidance will be available for users of this resource to provide feedback for updates and/or needed changes.

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CHAPTER OVERVIEW

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1.1: Criteria for Case Scenario Analysis

Define the problem: Students should focus on defining the problem by determining the root cause, not the underlying symptom(s).

Develop reasonable alternatives: Students should develop three to four reasonable alternatives to deal with the problem. Most laws are written around the concept of what a reasonable person would do.

Evaluate each alternative: Generally, any alternative has both advantages and disadvantages. Students should provide at least two advantages and two disadvantages for each alternative.

Select the preferred alternative: Students should select one alternative or a combination of alternatives to resolve the underlying problem. Additionally, students should provide a reasonable and logical explanation as to why one alternative or combination of alternatives is better than another alternative.

Support the decision with empirical evidence: Students should support their decisions with empirical evidence as applicable. Not all empirical evidence is generalizable to every problem.

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1.2: Topic 1- Professional Responsibility and Relationships Between Career Development Professionals and clients

Abstract

Topic 1 provides scenarios that ask students to consider the role of professional responsibility and relationships when working as career development professionals. The differences in clients and/or workers must be considered at all times when providing professional services. Career development strategies and concepts changes along with workers and workplace policies.

Scenario 1: Coaching Responsibly

Regina is a mid-career, Black female supervisor for a multinational corporation. Regina would like to be promoted to an executive level position within her company. She realizes that the culture of her organization does not favor the advancement of Black professionals and less so Black women. Regina has decided to hire a career coach. She decides that she would like the perspective of a white male because, white males appear to be the only ones successfully reaching the executive suite in her organization.

After a few weeks of searching for a career coach, Regina finds Steve. Steve has been recommended by several white males in Regina's organization who have used his services and have been promoted to the executive suite. Regina arranges a meeting with Steve. Steve advises Regina using the exact same resources that he has provided to her white male colleagues. After 6 months of career coaching from Steve, Regina has received no results from the changes that she has implemented after recommendations from Steve. Steve is baffled. He cannot begin to comprehend why his coaching is not working for Regina when he has seen phenomenal results in all of his other clients with the same information.

Discussion Questions

1. What are some of the potential problems that Steve is missing in his coaching of Regina?
2. Should Regina continue to seek career coaching from Steve? Why or why not?
3. Please find a real world example similar to this scenario. What happened and if resolved, how was the problem resolved?

Scenario 2: Professional responsibility of the career development professional

The country is trying to recover from a global recession. There are millions of people unemployed. However, the unemployment rate for Black workers is always double, if not triple, the rate of white workers with the same skills. There is a continuous stream of unemployed, skilled Blacks who come to meet with you in your role as career advisor at the unemployment office. You have access to information about jobs that you know the Black workers are qualified to do, but you also know that the employers with the most jobs do not like to hire Black workers.

Discussion Questions:

1. How do you help Black workers prepare to interview with employers who do not like to hire them?
2. What is your professional responsibility to these workers?
3. What is your professional responsibility to your employer?
4. What is your professional responsibility to the hiring organization?
5. What do you do with the information that you have about available jobs?
6. How do you help the Black workers obtain jobs?

Scenario 3: Career Development Expertise

Scotty is interested in changing careers. He schedules a career counseling appointment with a professional career development specialist, Carol. Carol meets with Scotty and documents his previous work history, education, and accomplishments to complete a professional resume for him. Carol tells Scotty that her fee is \$2,500. Scotty pays Carol because she assures him that the amount of money he pays her is miniscule in comparison to what he will earn on his next job. Carol offers Scotty no other service other than a sample cover letter. It has been a year since Carol met with Scotty. Scotty has not obtained a new job.

Discussion Questions:

1. Has Scotty been career counseled by Carol? Why or why not?

2. What more can Scotty do to obtain another position?
3. Is Carol obligated to further assist Scotty?

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1.3: Topic 2- Providing Career Services Online

Abstract

Topic 2 provides scenarios that ask students to develop an understanding of how technology influences changes in ways to develop employees or potential employees in their careers. It also suggests that students consider the digital divide and how access to technology or lack thereof can effect their ability to provide appropriate career services.

Scenario 1: Limitations of Online Career Services

Florine has been laid off from her job due to the effects of COVID-19. She is seeking to rejuvenate her career by exploring new opportunities. She can only receive career services through online processes due to the closure of government offices; however, the government offices in her county have limited technological resources, and the services cannot be viewed on cell phones. Florine has a smartphone but can no longer afford to pay for the data services. She can only receive text messages and phone calls. Florine also does not have a desktop, computer, laptop, iPad, or access to reliable internet services. She also does not have cable TV and without streaming services, cannot get a clear signal of public education channels.

Discussion Questions:

1. How can career professionals assist Florine?
2. Describe the best way(s) to improve Florine's resources to access online career services?

Scenario 2: Rural Living and Technology Accessibility

Joseph recently graduated community college. While a student, he had access to a computer on campus and had a part-time job that allowed him free Internet access. Since his graduation, Joseph has lost his part-time job and his car. Living in a rural area of his community, Internet accessibility is inconsistent. All career services from his community college are online. Joseph desperately wants a new job, but he has no transportation or access to seek career support.

Discussion Questions

1. What can be done for individuals like Joseph who have limited Internet access and need career assistance?

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1.4: Topic 3- Using Technology and Social Media in Human Resource and Workforce Development (HRWD)

Abstract

As technology and social media have become essential to communication and collaboration among workers, Topic 3 provides scenarios that ask students to explore barriers that can occur when not all workers understand or feel comfortable using technology and social media. The rapid changes that occur with technology require HRWD professionals to remain diligent in their commitment to understanding both the effect and use of technology on people.

Scenario 1: Age Discrimination and Technology

The average age of employees in your division of the organization is 50. These employees have had limited use of any kind of technology or social media both at home and in the workplace. You are located in a rural community that has limited access to consistent, Internet service. You have designed training for them that includes examples about negative social media usage. As the training progresses, participants begin informing you that they have never used a computer outside of the workplace. They do not own a home computer and their telephone is not a smartphone; it is a flip phone. Despite holding this training in the computer lab, employees are having trouble accessing the Internet. They have never heard of Facebook, Twitter, Snapchat, Instagram, Netflix, Hulu, or the myriad other social media platforms. They absolutely do not know what an emoji is.

Discussion Questions:

1. How do you engage these participants without mentioning their age?
2. How do you change the session focus without offending participants?

Scenario 2: Social Class and the Digital Divide

The COVID-19 pandemic forced many employees to work from home. Across the world employees had little time to adjust. There has always been a digital divide between rural communities and urban areas regarding access to broadband Internet services. There is also a digital divide based on socio-economic status. Black families have the least access to broadband both in rural and urban communities. As human resource development and workforce development professionals seek to help workers facing the digital divide, they encounter many barriers. The majority of the activities require that they also work from home, so they do not have the resources to all of the technologies that they need either. Their Internet speed in many homes are slower than in the workplace and workers cannot apply for new jobs. Most of the required forms are no longer available in paper copies; therefore, more time is spent on the telephone to try and assist workers as opposed to virtual computing.

Discussion Questions:

1. How will workplaces sustain the careers of workers whose only limitation is access to broadband Internet?
2. How do HRWD professionals adjust their ability to use technology from home to meet the needs of workers?
3. What can be done to bridge the digital divide in Black communities?

Supplemental Readings

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1.5: Topic 4- Supervising, Training, and Teaching Employees

Abstract

Topic 4 provides scenarios where students can learn how motivational theories play a role in the development of employees. There are many motivational theories that play a role in supervising, training, and teaching employees. Understanding how to influence employees' motivation is central to building successful relationships with employees for organizational success.

Scenario 1: Motivation Case Study

David was promoted to the position of Training Manager last week. His first project is to motivate the customer service representatives to provide better customer service despite the loss of three of their co-workers. The volume of work has not decreased, and no new employees will be hired. There will also not be any pay increases. Donna is the customer service supervisor, and it is her job to distribute the workload among the remaining 20 employees.

Donna has contacted David and requested cross-training of her employees as a motivational tool. She is hoping that the knowledge of new skills will be a motivation to the remaining employees so that they can obtain enhanced knowledge and skills for possible future promotions.

Discussion Questions:

1. In what way(s) can David motivate the customer service employees to learn new knowledge and skills?
2. In what way(s) can Donna motivate the customer service employees to apply the knowledge and skills obtained during training?
3. What key motivational theories are applicable to this case and why?

Scenario 2: Late to and Absent from Work

Monica started working at ABC Corporation five years ago. Monica recently married and now has an infant. Monica recently returned to work after her pregnancy leave. Monica's supervisor knows that she was previously an excellent worker; however, Monica has been late for work two times already and has also missed two days. If Monica is late or absent one more time, the supervisor will have no choice but to terminate her. The company policy must be followed and Monica signed the employee handbook agreeing to follow all policies.

Discussion Questions

1. Is there anything the supervisor can do to assist Monica? If so, what?
2. Should the ABC Corporation make changes to its late and/or sick policies?

Scenario 3: Performance-based Pay and Age

Marcus has been a team leader of his work group since he was 35-years old. He truly enjoys the leadership role, but now that he is 55-years old, his organization has decided to institute a performance-based pay system. Despite his documented, stellar performance, he is now required to attend mandatory classroom training. Marcus does not know how to read or write. He only attended school until 3rd grade.

Discussion Questions:

1. What will you do to ensure Marcus completes the required trainings?
2. Will you allow Marcus to continue to be a team leader? Why?
3. How do you counsel Michael without discriminating against him because of his age?

Supplemental Readings

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1.6: Topic 5- Ethics of Mentoring

Abstract

Topic 5 introduces scenarios where mentoring and ethics can be explored and considered as complementary to each other. HRD professionals can develop competencies to complement the skills needed to successfully develop employees. Both the employees and HRD professionals should engage in continuous learning and development. Understanding historical context with integrity and honor helps HRD professionals be true to the career that they have chosen.

Scenario 1: Training Mentor

Sheila has been certified as a mentor for employees in the workplace. She has worked in human resource development (HRD), specifically training and development for the past seven years. She believed that adding a mentoring certification as a competency would help her strengthen her ability to help the employees. Sheila has been asked to develop an employee who is very successful and currently enjoys her position. The employee's supervisor has asked Sheila to counsel the employee and mentor her so that she will accept a different position. The supervisor has a friend who's child needs a job and the only position the friend's child can do is the one that the current employee enjoys.

Discussion Questions:

1. How should Sheila respond to the supervisor?
2. Is it ethical for Sheila to mentor an employee away from a job in which she is successful?

Scenario 2: Recruitment

Jeremy is a college recruiter for his company. His job is to primarily attend Historically Black Colleges and Universities (HBCUs) career fairs to recruit minority students. Unbeknownst to many people, students who attend HBCUs are not all Black. West Virginia State University, for example, is an HBCU whose students are now predominantly white. The student demographics as of 2018 were:

Student Profile in Fall 2018

- 74.2%-Caucasian
- 8.1% African American
- 3.1% Asian, Hawaiian/Pacific Islander, Hispanic or American Indian
- 4.9% Multiracial
- 8.4% undeclared race/ethnicity
- 1.3% non-resident alien

<https://wvstateu.edu/about/administration/institutional-research/wvsu-quick-facts.aspx>

Jeremy's company wants Black applicants specifically because they are not meeting their Affirmative Action (AA) requirements. Yet, Jeremy knows that the company can meet its AA needs by recruiting white women instead. Jeremy misleads his company by requesting to go to WV State University. He recruits white females only and tells his company that he could not find any qualified Black applicants.

Discussion Questions

1. Do you believe Jeremy's actions were illegal? Why or why not?
2. Do you believe Jeremy's actions were unethical? Why or why not?

Supplemental Readings

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1.7: Topic 6- All Employees' Access to Career Development, Training and Development, and Organization Development Activities

Abstract

Topic 6 provides scenarios that ask students to examine their role in the access to training and development that HRWD professionals provide to all employees. Exclusionary tactics are common in organizations and their effect on organizational climate can determine the success or failure of developmental activities and initiatives. Having a well-designed, transparent strategy can help HRWD professionals in all aspects of employee development.

Scenario 1: Exclusionary Tactics

Rosalind arrived at her new job as a single mother. She received an invitation to attend, a yet to be scheduled, meeting between faculty and graduate students. She responded to the emailed invitation that she was interested in attending the meeting. Rosalind never received a follow-up email informing her of when the meeting was to be held and the location.

A few weeks later, Rosalind's colleague, Robert, asked her why she did not attend the graduate student and faculty meet and greet the prior evening. Rosalind informed Robert that she had never received the official invitation after responding to the inquiry about attending. Robert said he did not understand what had happened and apologized.

Rosalind went to Karen who had sent the original email and asked her why she never received the official invitation. Karen informed her that she, as the administrative assistant, was informed by another faculty member, Kitty, that Rosalind probably wouldn't have childcare and be able to attend.

Discussion Questions:

1. How should Rosalind respond to this situation?
2. How can this situation effect Rosalind's relationship with the graduate students in her program?
3. How can this situation affect Rosalind's ability to create collegiality with her peers?

Scenario 2: Strategic HRD Case Study

XYZ company is opening a new facility and does not have the resources to hire additional organizational development or training professionals. Mary, the training department manager has one organization development (OD) specialist and three trainers on her staff. She must maintain the implementation of an in-house performance-based pay system for 500 current employees and integrate the 300 new employees into the system. She must also manage all of the other trainings required for the new employees to meet mandated, federal requirements associated with occupational safety and health administration (OSHA) and other entities. Mary has three months to prepare a strategy to meet the new facility training needs.

Discussion Questions:

1. In what way(s) can Mary ensure that her training goals align with the organization's goals?
2. What are the essential components that need to be included in Mary's plan?
3. Identify the key stakeholders whose needs Mary's plan must address?

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1.8: Topic 7- Power and Privilege Dynamics

Abstract

Topic 7 provides scenarios that require students to acquire an understanding of how power and privilege can be misused and/or misunderstood. The appropriate use of power and privilege is essential for a healthy organizational culture where all employees feel valued. The contributions of all employees should collectively contribute to the success of the organization.

Scenario 1: Abuse of Training Power

You are the training and development department leader. You have not been able to keep the required two trainers who report to you for longer than 6 months at a time. The turnover in your department has been 100%, twice, in the past two years. None of the supervisors in other departments want you or your trainers to interact with their employees. The supervisors have expressed to organization leadership that you are misusing your power as a training department leader and are not listening to them as they try to explain to you that your training curriculum and processes do not align with how their employees do their jobs. They also complain that you try to use your power to force them to send their employees to training sessions. Their employees always come back from every training session angry about their experience with the training department leader and the trainer. There has also been no significant productivity improvement by workers after completing training.

Discussion Questions:

1. In what way(s) is power and privilege dynamics a problem in the above scenario?
2. What should the supervisors do?
3. What should the employees do?

Scenario 2: Privilege of a White Female to Openly Show Bias

Micah has been employed by his organization for five years. He is a white male, LGBTQ employee who has received mentorship and positive, biased treatment by his supervisor throughout his time within the organization. In fact, Micah is being mentored to become a supervisor by a white female who was mentored in the same way as she is providing mentorship for Micah.

Trevor is also a white male, LGBTQ employee. He has done much more work than Micah, but his work and achievements have never been publicized by the supervisor. In fact, she ignores all of Trevor's work and pretends that he is not there. When asked if she thinks that it is appropriate to show favoritism towards Micah over Trevor and the other employees, she acknowledges that she recognizes her bias and said that she was told by her mentor that it was not a problem. Trevor subsequently left the organization.

Discussion Questions:

1. Do you think Trevor made the right decision? Why or why not?
2. How would you have handled the situation if you were Trevor?

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1.9: Topic 8- Authenticity of Allies

Abstract

Topic 8 introduces students to the concept of allies for historically marginalized groups in the workplace. It can be argued that allies are supposed to be positive influences on the people they purport to help. However, there are fine lines that allies tend to cross when they covertly or overtly diminish the credentials of those they are seeking to help. One wonders if they even know the meaning of help and its purpose.

Scenario 1: Diminishing the Credentials of Blacks by White Allies

Black people have been reporting incidents of discrimination in the workplace, that have been documented, since the inception of the Civil Rights Act of 1964. Prior to 1964, there were few Blacks in the formalized workplaces in the United States of America. Despite the ability of Blacks to communicate their lived experiences, they are often ignored until a white ally voices their story for them. They are only acknowledged because a white person said something. Instances of these occurrences have been chronicled by Black workers repeatedly; yet, very little has changed. The validity and credibility of what they report is ignored even if they are more highly credentialed than their white allies.

Discussion Questions:

1. Why does who tell the story matter for action to occur in support of Black workers?
2. Who determines the validity and credibility of Black voices and why?

Scenario 2: Controlling the Dialogue of Conversations Begun by Black People

Black people and Black scholars in America have been against racism (anti-racist) for at least 400 years. Yet, in 2020 white scholars are trying to introduce anti-racism as an emerging trend. White scholars are introducing the old ideas and attempting to control the dialogue of conversations begun by Black people.

Discussion Questions:

1. How and why is this acceptable?
2. In what way(s) does this diminish the credentials of Black people and Black scholars in America?
3. How do we get allies to research the scholarship of Black scholars and listen to the lived experiences of Black people?

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1.10: Topic 9- Ethics of Career Development and Training and Development Assessments

Abstract

Topic 9 allows students to apply concepts to better understand how assessments can be both detrimental and positive to making successful hires and career transitions when used appropriately. HRWD professionals must consider all the consequences that can occur prior to using an assessment. Making the right hiring decisions influences employee morale. Hiring the wrong employee at any level of the organization can be problematic.

Scenario 1: Preparing for a Forklift Assessment

Helen arrived in the United States at the age of 18 as an international exchange student. In her home country of the Czech Republic, she did not have to learn much about the US language and workplace terminologies. Now that she has obtained her first job, she is excited to be working and enjoys the work that she does. There are changes occurring on her job and her supervisor has approached Helen about new training and assessment requirements for her to progress within her career path.

Helen wants to progress but is required to learn the classroom knowledge about operating a forklift, tow motor, and other mobile equipment inside the facility. During her first day of class, Helen realizes that she does not understand anything that the trainer is saying. She does not understand what a triangle is without being shown a picture. She absolutely cannot understand the concept of a stability triangle which is essential to understanding how to operate a forklift. Helen must be able to pass the written assessment about operating a forklift before she will ever be allowed to train to drive one.

Discussion Questions

1. What can the trainer do to help Helen?
2. What can the supervisor do to help Helen?
3. What can Helen do to help herself?
4. In what way(s) does this assessment have the potential to have an adverse impact on Helen?

Scenario 2: Biased Leadership Development Assessments

XYZ Corporation has introduced new hire assessments into their leadership development program. All new leaders must complete the assessment prior to participating in the second stage of the leadership program. No women or minorities have ever made it past the first stage of the leadership development program because there are gender and culturally biased questions on the assessment. Tricia has just been hired as HRD manager to oversee the leadership development program and upon discovering the bias in the assessment, it is her job to inform management, consisting of all white males, about the assessment bias.

Discussion Questions

1. How can Tricia help eliminate assessment bias against women and minority leaders?
2. Is it the role of HRD professionals to determine assessment bias?

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1.11: Topic 10- Protected Class Bias

Abstract

Topic 10 requires that students have an understanding of protected class groups in the workplace and learn how discrimination of these groups is illegal and in many instances unethical. There are many real-life cases in the empirical research and professional literature of discrimination which have led to the creation of all the laws and mandates that protect these groups of employees in the workplace. As students examine these scenarios, it should be with the understanding that laws and mandates do not eliminate discrimination. Only changed behavior and actions of leaders and employees can help eliminate workplace discrimination.

Culture of Disbelief

Ben arrives at least 20 minutes before his work shift. In his 15 years working for the company, he has never been late. He also has a spotless disciplinary record. Ben is the only Black male working in a lab full of women. There are only two Black women working in the lab, the remaining 10 women are white. Ben tries his best to keep a low profile because he understands the southern culture in the community where he works and does not want to be perceived as offending the white women with whom he works. He knows, from witnessing the experiences of other Black males, that the company where he works has a culture of disbelief when it comes to accepting the word of a Black male when he has to defend himself against the word of a white woman.

Ben would do anything requested of him, on the job, by his peers and supervisors. One day one of the white women told one of the Black women that she had observed Ben staring at the Black woman a little too long. Therefore, she decided to turn Ben into human resources and accuse him of sexual harassment through 3rd person sexual harassment. The Black woman never saw Ben looking at her inappropriately neither did the supervisor. HR representatives spoke with Ben about the report and Ben quit his job without saying anything to anyone. Upon hearing that Ben had quit, many of the employees were upset and angry at the woman that reported Ben to HR. The supervisor learned, from HR, that no negative action was taken against Ben.

Discussion Questions:

1. What can the supervisor do to improve the work environment?
2. Why do you believe Ben quit?
3. What could have been done to prevent Ben from quitting?
4. How can a company get eliminate a culture of disbelief?

Culture of Inaction

Mary and her colleagues have reported situations of covert racism through all avenues available to them throughout their organizations for the past 20 years. They have watched as those in positions of leadership note that they have been told of the situations, but there have been absolutely no visible changes in the treatment that Mary and her colleagues have received from their supervisors. In fact, the treatment has consistently worsened. None of the young Black employees will stay beyond a year with the organization beyond a year, if that long, because of the culture inaction displayed by leadership. It is futile to report anything perceived as discriminatory, so Mary and her colleagues have remained silent about any ill-treatment. They have chosen to just go to work, do their job, and go home. The productivity in the company has significantly deteriorated because of the high turnover and low morale of employees. There is very little camaraderie among employees.

Discussion Questions:

1. What can an organization do to change the culture into a culture of action instead of inaction?
2. Why do you believe the younger workers are leaving and the older workers choose to stay?

Supplemental Readings

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1.12: Topic 11- Covert Conditioning of Girls/Women Away from Male Dominated Fields

Abstract

Historically, women and underrepresented in science, technology, engineering, and math (STEM) technical careers. The problems usually begin within the educational system. Without the proper educational foundation, it is extremely difficult for girls to pursue higher education that will provide them the skills necessary to succeed as women in the workplace. Without women in technical positions both in school and the workplace, it is difficult for women to overcome barriers to entry in STEM careers.

Scenario 1: Covert Conditioning through Advising

Marsha is excited about the opportunity to major in engineering. She has dreamed of being an aerospace engineer since childhood. Her first day on campus, she meets with the advisor of the pre-engineering program, Cheryl. Cheryl politely tells her that there has never been a woman to graduate from the aerospace engineering program in the history of the institution, and she would advise her to go to the career center and talk to a career development specialist about what aerospace engineering is and what the men in that field do every day on the job. She further tells Marsha that women have struggled in that field because of all the time it takes to complete the work and she will not be able to go shopping or hang out with her girlfriends. She also tells Marsha that there is no female bathroom inside the lab, she will have to go outside of the lab into another area of the building to access the women's facilities.

Discussion Questions:

1. What are some of the covert conditioning comments that Cheryl said to Marsha?
2. How can Marsha overcome those comments and achieve her goal?
3. What would you have done differently than Cheryl?

Scenario 2:

Maria is excited to have graduated with her doctoral degree in Chemistry. She wants to remain on the technical side of the business and progress through the technical management ranks. However, as the only Hispanic female, she is always given the least visible technical projects to work on and is provide very little mentoring to improve her visibility to executive leadership. Maria has been asked to move to the leadership side of the business where she has very little leadership knowledge. She would need to go back to school and/or spend a lot of time in leadership development programs before she could even begin to make progress. There is no guarantee that she could ever return to the technical side of the business.

Discussion Questions

1. What should Maria do to improve her visibility within the organization?
2. How can organizations better develop minority women into technical leadership positions?

Supplemental Readings

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1.13: Topic 12- Educational Opportunity Bias

Abstract

Educational opportunity bias has long been a problem in throughout out the world, particularly for girls, minorities, and low income individuals. Education is sometimes seen as the great equalizer for opportunities in the workplace and society. Although education can be beneficial, the bias that exists in educational systems can create irreparable problems for individual students and society.

Scenario 1: Misadvised and Educational Progression

Serena is an undergraduate student in a field of study that requires a master's degree in order to obtain sufficient employment. Serena is a first-generation college student, so she does not know much about the academic process to apply for the graduate program in her field. Serena is also the only African American student in her program. Serena struggles to complete her degree, but she does meet all the criteria to be admitted to the master's program. Her advisor does not inform her that she must apply for the master's degree program prior to a specific deadline because her advisor knows that there is a limit to the number of applicants who can be admitted each academic year. Serena finds out after the deadline that she will have to go to another institution or wait a year to apply for admission to her current institution.

Discussion Questions:

1. What can Serena do to ensure that what happened to her does not happen to other students?
2. Where should Serena complete her master's degree? Why?
3. Do you think Serena was misadvised on purpose? Why or why not?

Scenario 2: No Recommendation

April has always loved math. She graduated with the highest math grade point average (GPA) in her high school and decided to pursue an advanced degree in physics. Because she likes a small school environment for learning, April decided to attend a small college and major in engineering. She wants to begin her education in a 3-2 transfer program so that she can establish a solid foundation prior to attending a major institution for her last two years. There is only one physics professor at April's college, and he is the only person who can write April's letter of recommendation as he manages the 3-2 program for the college. At the end of April's second year, the physics professor tells April that he will not recommend her for the program even though her grades are just as good as the white male that he will recommend.

Discussion Questions:

1. What, if anything, can April do to stop this education bias?
2. Has the physics professor violated any laws by not recommending April?

Scenario 3: Educational Tracking

Robert is a first year college student, from a rural farming community and has no idea what he wants to do in his career. He is undecided but has expressed to his advisor his interests in business and/or journalism. Robert, faithfully, meets with his advisor as required each semester. However, his advisor never informs Robert that he must meet pre-core requirements for both his fields of interest or he will not be admitted because of space limitations. When Robert realizes the situation, he is required to wait another year to potentially be enrolled in his area of interest. Robert does not want to wait an extra year to complete his degree. He meets with his advisor and is told that there is always room in a particular degree program in agriculture for students like him. Robert feels betrayed and that he has been tracked away from his desired educational goal.

Discussion Questions;

1. Has Robert been misadvised? Why or why not?
2. Has Robert experienced educational bias? Why or why not.

Supplemental Readings

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1.14: Topic 13- Occupational Segregation and Promotional Ceilings

Abstract

Occupational segregation occurs in many ways. Topic 13 provides students with the opportunity to discuss ways that occupational segregation is used to derail the promising careers of employees. Without a cohesive work environment, where all employees feel integral to the organization's success, organizations see high turnover among high potential employees.

Scenario 1: Research Group Segregation

Peter has an advanced degree plus additional work experience. John has the same advanced degree as Peter but no work experience. Peter is an African American male and John is a white male. They are both hired on the same day. However, John is assigned to the most advanced research development team and allowed to manage his own project immediately. Peter is assigned to a less visible research team and assigned to work under several junior managers. Peter has noticed that there are no African American or other minorities in the group within which John has been assigned. In fact, there has never been any diversity within that group including white women. Peter feels that he and his minority group colleagues have been systematically segregated away from that particular research group despite their qualifications. Despite being equally qualified with John, Peter has only been hired for this position because his organization has been cited for occupational segregation violations.

Discussion Questions

1. Imagine that you are Peter, what would you do about the situation and why?
2. Peter has been asked by his minority group colleagues to file an official grievance and lead their efforts for change, should Peter agree to their request? Why or why not?

Scenario 2: Intentional Exclusion

Connie comes to work everyday wanting to be a team player. She is the least senior person on her team and realizes that the most important thing to success in her position is to be perceived by her peers and supervisor as a team player. Yet, every suggestion and contribution that Connie gives goes unacknowledged and unrecognized. Connie has also been bullied by her colleagues and is beginning to feel resentment. She has repeatedly asked to be reassigned, and her requests have been denied.

Connie realizes that if change does not occur, she may become bitter towards her manager and co-workers. She knows that she is the only person in her position who is being treated this way, and that she is being ignored on purpose.

Discussion Questions:

1. What can Connie do to ensure recognition of her contributions?
2. How can Connie be expected to feel included when she is consistently excluded?
3. How would you provide career coaching to Connie in this situation?

Scenario 3: Glass Ceiling

Margaret is a 45-year old, 20-year employee of her organization. She has been with the organization since inception as a military subcontractor on government contracts. She has received stellar performance reviews on all of her assignments throughout her tenure with the organization. She has never missed a deadline, and she chose not to have children because she wanted to progress in her career. Yet, she has been denied promotion after promotion when every male employee that she has trained has been promoted ahead of her. Margaret perceives that she has been denied promotions because she is the only woman working for the organization and has recently learned that all of their partner organizations are led by former military, male leaders. Margaret has been told that if she pursues opportunities for advancement, she will need to leave the organization because she will be jeopardizing their opportunity to continue their lucrative partnerships.

Discussion Questions:

1. What should Margaret do if she wants to be promoted?
2. Is Margaret's current employer being fair to her? Why or why not?

Scenario 4: Military Glass Ceiling

Susan graduated from the Naval Academy and has followed all military protocols. Despite, all of her dedication, Susan knows that she will never be able to ascend to the highest level in the military. The military has a seniority system and because of that system, the opportunities for advancement are extremely limited. One of Susan's options for senior leadership within the government workforce is to retire from the military and take a civilian position. The only thing that makes the situation better is that there is more availability of senior positions.

Discussion Questions:

1. What should Susan do to improve her career options?
2. What can organizations do to help women ascend to higher levels and break through glass ceilings?

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1.15: Topic 14- Confidentiality

Abstract

Topic 14 allows for the discussion of confidentiality and how the lack of maintaining confidentiality can be detrimental to organizational success. Building trust with employees is hard work that can be easily destroyed when confidentiality is violated. Inadvertent violations of confidentiality are still violations that are difficult to rectify.

Scenario 1: Mental Health Confidentiality

Terrence had an unexpected death in his family. He has been diagnosed as suffering from anxiety and depression as a result of his inability to cope with his loss. He informed his supervisor Michael of his situation. Instead of Michael informing Terrence of the EAP services of the organization, Michael sent an email to all of Terrence's peers asking them to be aware that Terrence is suffering from mental illnesses because of his recent loss and to be alert just in case they witness Terrence's performance declining.

Discussion Questions:

1. Was Michael wrong to inform Terrence's peers about his mental diagnosis? Why?
2. What can be done to solve this problem?
3. Should Michael be terminated? Why?

Scenario 2: Learning Ability Confidentiality

Carol is responsible for training all of the organization's employees. She meets with all employees to ensure that the appropriate level of training is available for each employee. Employees share their anxiety and concerns about having to learn new skills to keep their jobs. These conversations are very sensitive to the employees, and they trust Carol to keep their learning confidence levels confidential.

Carol's administrative assistant, Melissa, has been privy to many of Carol's conversations with employees. Some of the employees have been made aware that Melissa has indiscreetly shared some of their personal information and comments with other employees. The employees whose information has been shared no longer feel comfortable seeking training from Carol.

Discussion Questions:

1. Do you think that Carol can win back the trust of the employees? If so, how? If not, why?
2. What should Carol do about Melissa's violation of employee confidentiality?

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1.16: Topic 15- Diversity, Equity, and Inclusion (DEI)

Abstract

Topic 15 provides scenarios that provide students an opportunity to examine problems with diversity, equity, and inclusion in the workplace. There is no law that requires diversity in the workplace. There are laws that can lead to diversity, equity, an inclusion, but none that specifically requires diversity. Diversity just means difference. It must be defined in context to be applicable for use to achieve equity and inclusion.

Scenario 1: Presentation of Diverse Employees throughout Organizations

Many organizations have minority themed activities to celebrate diversity of its employees. In many instances these activities are appreciated by minority employees representing these groups. However, if these activities are the only efforts exerted to “present” these minority groups to other organization employees, it may not be enough to increase understandings of diversity. Some non-minority employees may see these activities as entertainment while members of the minority groups value their cultural activities as sacred to the sustainability of their cultural heritage. The way these groups are presented is often perceived as an insult to their heritage.

Discussion Questions

1. How do you present your minority employees to the majority groups in the organization?
2. Do you value the cultural heritage of all employees within the organization?
3. Should cultural heritage be a part of diversity, equity, and inclusion efforts within organizations? Why or why not?
4. Does the cultural heritage of minority groups affect you in the workplace? How?
5. Is the cultural heritage of minority groups offensive to you? Why?

Scenario 2: DEI Leadership

Ray is a Black male who has been selected to lead his organization’s DEI efforts. His organization employees over 5,000 employees and less than two percent of them are from all minority groups combined. Ray does not have any specific DEI background because there is no known degree that prepares one to be a DEI leader. Ray has cultivated relationships with the senior leadership in his organization and because he has made it, he believes that other minorities can succeed within the organization too. Ray never meets with other minority groups in the organization. In fact, he has never sent an email to the minority employees in salaried positions, so those below the salaried ranks have even less of a chance at being heard by Ray. Ray’s DEI efforts are with external constituents of the organization so that these constituents will continue to invest with the organization. The organization’s brand must be perceived as promoting DEI regardless of the morale of internal minority employees. Ray is promoted because of his perceived DEI efforts.

Discussion Questions:

1. Should Ray have worked to improve the DEI situation for internal minorities of the organization?
2. Has Ray succeeded in meeting the DEI efforts of his organization?
3. Is organizational DEI branding more important to organizational success than the morale of workers?
4. How should DEI leaders be prepared to lead DEI efforts within organizations?

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1.17: Topic 16- Artificial Intelligence (AI) and HRD

Abstract

Topic 16 allows students to discuss scenarios of how artificial intelligence (AI) and HRD are linked. The expertise of AI is not ethically sound, and the human expertise of HRD professionals can alleviate some of these concerns. Understanding the gap between HRD and explainable AI is important as technology becomes more integrated into workplace activities.

Scenario 1: AI and Data Analysis

Bethany started her new position two weeks ago and is excited to be doing data entry work. She has to analyze the human resource materials before inputting the content into the human resource information system (HRIS). Unbeknownst to Bethany, her organization has a plan to begin, in three months, using AI to replace the work that she does. Bethany has been asked to work with information system (IS) and information technology (IT) employees to make sure that the process that she is using to input the data is correct. Bethany does not discuss the way that she analyzes the data. She only informs IS and IT employees of the steps that she takes to input the data.

When the organization implements its new AI generated HRIS, sensitive confidential employee data is incorrectly inputted throughout the system. Bethany is asked to meet with leaders including her supervisor and leaders from IS and IT. When asked why the data is incorrect in the new system, Bethany informs them that she has an analysis process that she did not share because she did not know that AI would be used to input the data.

Discussion Questions:

1. What do you believe to be the main reason that data was incorrectly inputted into the HRIS?
2. How would you correct this situation and make amends to employees whose data was incorrectly distributed throughout the organization?
3. What could have been to prevent this situation from occurring?

Scenario 2: Fairness of AI in Promotion

Randy has been with his organization for 10 years and has been working towards a promotion on his job for five years. He has done everything that his supervisor has asked and has been proactive in leading new initiatives. Despite all of Randy's hard work, his organization has determined that they can save money by using machine learning and AI to replace him. They also used AI to determine how much work Randy actually performed each day. The organization used AI data in its decision to downsize and has informed Randy that his position is being eliminated. They do let him know that should he want to apply for other jobs in other divisions of the organization, that opportunity is available. Randy is in shock and decides to meet with HR to find out why his position was eliminated. When told about his work being done by AI, Randy becomes angry.

Discussion Questions:

1. Do you think that it was a fair use of AI by the company? Why?
2. Pretend that you are Randy, would you seek another job with the organization?
3. Please find and share a real world example of how AI is being used to replace employees?

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